

The Abolition of Jagirs and Land Reforms (Vindhya Pradesh) (Madhya Pradesh Amendment and Validation) Act, 1965

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State of Madhya Pradesh - Act

The Abolition of Jagirs and Land Reforms (Vindhya Pradesh) (Madhya Pradesh Amendment and Validation) Act, 1965

MADHYA PRADESH

India

The Abolition of Jagirs and Land Reforms (Vindhya Pradesh) (Madhya Pradesh Amendment and Validation) Act, 1965

Act 37 of 1965

Published on 3 November 1965

Not commenced

[This is the version of this document from 3 November 1965.]

[Note: The original publication document is not available and this content could not be verified.]

PREFACE

The Abolition of Jagirs and Land Reforms (Vindhya Pradesh) (Madhya Pradesh Amendment and Validation) Act, 1965
(No. 37 of 1965)

Received the assent of the Governor on the 28th October, 1965; assent first published in the "Madhya Pradesh Gazette" Extraordinary on the 3rd November, 1965.

An Act to amend the Vindhya Pradesh Abolition of Jagirs and Land Reforms Act, 1952 and to validate the appointments of Additional Tahsildars made in Vindhya Pradesh region and any other things done or actions taken under the said Act by the said officers.

Be it enacted by Madhya Pradesh Legislature in the Sixteenth Year of the Republic of India as follows-

BODY

1.

Short title.

- This Act may be called the Vindhya Pradesh Abolition of Jagirs and Land Reforms (Madhya Pradesh Amendment and Validation) Act, 1965.

2.

Amendment of Section 2.

- Amendment incorporated in the text at appropriate place.

3.

Insertion of new Section.

- Amendment incorporated in the text at the appropriate place.

4.

Amendment of Schedule.

- Amendment incorporated in the text at the appropriate place.

5.

Retrospective operation of Sections 2, 3 and 4.

- The amendments made by Sections 2, 3 and 4 shall be deemed to have, formed part of the principal Act from the date its commencement.

6.

Validation of appointment and other actions of Additional Tahsildars and Naib-Tahsildar.

- Notwithstanding any judgement, decree or order of any court,-

(a)

the Additional Tahsildars appointed in the Vindhya Pradesh region before the commencement of this Act shall be and shall always be deemed to have been appointed under Section 4-A of the principal Act as inserted by this Act; and

(b)

all proceedings taken, orders passed or pattas issued under the principal Act by the Additional Tahsildars or the Naib-Tahsildars whether exercising powers of Tahsildars or not before such commencement shall always be deemed to have been validity taken, passed or issued and the validity of such proceedings, orders or pattas shall not be called into question merely on the ground of the competency of the said officers to take such proceedings, pass such order or issue pattas under the principal Act.

7.

Restoration of appeals.

- Any appeal filed during the period commencing on the 8th July, 1963 and ending on the date immediately proceeding the date of commencement of this Act against the order of the Additional Tahsildar or the Naib-Tahsildar whether exercising the powers of a Tahsildar or not, making allotment of land under Section 21 or 22 of the principal Act and dismissed on the ground that the said Additional Tahsildar or Naib-Tahsildar was not competent to make such allotment shall stand restored and the appellate authority shall proceed to deal with it accordingly.

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